

26STCV21357 26STCV21357

County: los-angeles

Division: Civil Law and Motion

Department: 534

Hearing date: 2026-08-13

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Case Number: 26STCV21357 Hearing Date: August 13, 2026 Dept: 534

Joshua Kim, the child of Christina Kim and

Peter Kim, brings a renewed ex parte application seeking an order relating one (or two, it is not clear) civil cases with a family law case filed in 2021 and set for trial in a few weeks. In the alternative Joshua seeks an order shortening time to hear a motion to relate the cases. The court will refer to the parties by their first names for clarity; no disrespect is intended.

The current ex parte application has a notice

of related case identifying two cases: civil case 26STCV121357 and family law case 21STFL04935. His earlier NORC also identified a second civil case, 24STCV22915.

The current ex parte application lists all three cases on the same caption.

Having reviewed the underlying cases, the court

denies the ex parte application to relate the cases without prejudice. The court also denies the application to shorten time for a hearing.

It appears that Christina has pending in the family

law matter a motion to join Joshua for all the same reasons Joshua now raises:

he is a claimant as to a key asset in the marital dissolution matter. If the family court grants the joinder motion, then Joshua has the relief he seeks. And that relief is more complete than an order relating the civil and family law cases because an order relating cases is not the same as an order consolidating cases. If the joinder complaint is allowed, Joshua's interest in the property will be adjudicated in the family law proceeding.

Additionally, the court is confused as to

whether Joshua is or is not seeking to relate the civil case filed in 2024. He recently had asked be also be related.

Last, a technical point. When cases are filed in the civil division and the family law division, and a party seeks to relate the cases, the request is done via notice of related case filed in the underlying cases, and a copy of the notice of related case delivered to Department 534. This procedure is set out in our local rules. Joshua is not entitled to a motion hearing in the first instance on a notice of related case. The court acknowledges that it gave Joshua different information at the first ex parte hearing because the court did not fully appreciate the procedural stance of the case at that time.